

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY KINGS-----X
TYSHAWN CORBETT,

Plaintiff(s)

- against-

Index No.:

Date Purchase:

Plaintiff (s) designates

Kings County

as the place of trial

The basis of the venue is

Plaintiff Place of Residence

399 Essex Street

Brooklyn, NY 11208

SUMMONS

THE CITY OF NEW YORK
 NEW YORK CITY POLICE SERGEANT
 PAUL MUGGEO, Shield #1298, 165th command,
 NEW YORK CITY POLICE OFFICER
 FELIX ROSA, Shield #14543, 165th Command,
 NEW YORK CITY POLICE OFFICER
 JAMAL BLACKETT, Shield #860, 165th command,
 NEW YORK CITY POLICE LIEUTENANT JOHN DOE,
 NEW YORK CITY POLICE OFFICER JOHN DOE,
 75th Precinct,

Defendant(s).

County of Kings

-----X
To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: November 23, 2016

Defendant's Address:

See above

Notice: The nature of this action is

Negligence and/or Respondeat Superior, NYS Civil Rights

The relief sought is: monetary damages for personal injury

VICTOR BROWN,
 Attorney for Plaintiff(s)
 11 Park Place, Suite 600
 New York, New York 10007
 (212) 227-7373

Plaintiff TYSHAWN CORBETT demands Judgment and Compensation against the Defendants in the First Cause of Action which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction) together with interest from the 23rd day of November 2016 together with the costs and disbursements of this action.

DEFENDANT'S ADDRESS

CITY OF NEW YORK
 1 Centre Street
 New York NY 10007

NYPD - 75th Precinct
 1000 Sutter Ave,
 Brooklyn, NY 11208

Narcotics Division
 1 Police Plaza Rm 1100
 New York NY 10038

STATE OF

COUNTY OF

ss.:

I, the undersigned, an attorney admitted to practice law,

Check Applicable Box
☐ Certification
By Attorney
☐ Attorney's
Affirmation

certify that the within
has been compared by me with the original and found to be a true and complete copy.
state that I am

the attorney(s) of record for
in the within action; I have read the foregoing
and know the contents thereof; the same is
true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as
to those matters I believe it to be true. The reason this verification is made by me and not by

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated:

.....
The name signed must be printed beneath

STATE OF

COUNTY OF

ss.:

Check Applicable Box
☐ Individual
Verification
☐ Corporate
Verification

I, the
the foregoing
my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those
matters I believe it to be true.

the of
a corporation and a party in the within action; I have read the foregoing
and know the contents thereof; and the same is true to my own knowledge,
except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe
it to be true. This verification is made by me because the above party is a corporation and I am an officer thereof

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Sworn to before me on

.....
The name signed must be printed beneath

STATE OF

COUNTY OF

ss.: (If both boxes are checked—indicate after names, type of service used.)

I,
of age and reside at
On

I served the within

Check Applicable Box
☐ Service
By Mail
☐ Personal
Service on
Individual

by depositing a true copy thereof enclosed in a post-paid wrapper, in an official depository under the exclusive care
and custody of the U.S. Postal Service within this State, addressed to each of the following persons at the last
known address set forth after each name:

by delivering a true copy thereof personally to each person named below at the address indicated. I knew each person
served to be the person mentioned and described in said papers as a party therein:

Sworn to before me on

.....
The name signed must be printed beneath

NEW YORK STATE SUPREME COURT
KINGS COUNTY

Docket #

-----X
TYSHAWN CORBETT,
Plaintiff,

**VERIFIED
COMPLAINT.**

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE SERGEANT
PAUL MUGGEO, Shield # 1298, 165th Command,
NEW YORK CITY POLICE OFFICER
FELIX ROSA, Shield # 14543, 165th Command,
NEW YORK CITY POLICE OFFICER
JAMAL BLACKETT, Shield # 860, 165th Command,
NEW YORK CITY POLICE LIEUTENANT JOHN DOE,
NEW YORK CITY POLICE OFFICER JOHN DOE,
Defendant(s).

-----X

Plaintiff, TYSHAWN CORBETT, by his Attorney, Victor M. Brown, Esq., 11 Park Place,
Suite 600, New York, NY 10007, alleges and avers the following against all named Defendants:

PARTIES

1. At all times relevant, Plaintiff, TYSHAWN CORBETT, is a resident and citizen of the State of New York.
2. At all times mentioned, municipal Defendant CITY OF NEW YORK is a municipal entity, created, incorporated and authorized under the laws of the State of New York. It is authorized by law to employ, supervise and train Police Officers through its Police Department, which acts as its agent in the area of policing, training of police officers, and

law enforcement for purposes of enforcing laws, rules and regulations of the municipal Defendant, and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department and the employment of Police Officers, as said risk attaches to the public consumers of the services provided by THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

3. Defendants, NEW YORK CITY POLICE SERGEANT PAUL MUGGEO, NEW YORK CITY POLICE OFFICER FELIX ROSA, NEW YORK CITY POLICE OFFICER JAMAL BLACKETT, NEW YORK CITY POLICE LIEUTENANT JOHN DOE and NEW YORK CITY POLICE OFFICER JOHN DOE, upon information and belief are all assigned to the New York City Police Department's BROOKLYN NORTH NARCOTICS DIVISION (Command 165), and the 75th Precinct, respectively, and are at all times relevant, Officers and employees/agents of THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK. Defendants, NEW YORK CITY POLICE SERGEANT MUGGEO, NEW YORK CITY POLICE OFFICERS ROSA and BLACKETT, NEW YORK CITY POLICE LIEUTENANT JOHN DOE and NEW YORK CITY POLICE OFFICER JOHN DOE are sued individually and in their official capacities. At all times relevant Defendants NEW YORK CITY POLICE SERGEANT MUGGEO, NEW YORK CITY POLICE OFFICERS FELIX ROSA and JAMAL BLACKETT, NEW YORK CITY POLICE LIEUTENANT JOHN DOE and NEW YORK CITY POLICE OFFICER JOHN DOE were acting under the color of State Law in the course and scope of their duties and

functions as agents, servants, employees and Officers of THE NEW YORK CITY POLICE DEPARTMENT and otherwise performed and engaged in conduct incidental to the performance of their lawful duties. Defendants NEW YORK CITY POLICE SERGEANT MUGGEO, NEW YORK CITY POLICE OFFICERS FELIX ROSA and JAMAL BLACKETT, NEW YORK CITY POLICE LIEUTENANT JOHN DOE and NEW YORK CITY POLICE OFFICER JOHN DOE were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT at all times relevant herein with the power and authority vested in them as Police Officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, and incidental to the lawful pursuit of their duties as Officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

4. THE NEW YORK CITY POLICE DEPARTMENT, while not a named Defendant, is nevertheless a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to carry out all police functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and the employment of Police Officers.

FACTS & PROCEDURAL HISTORY

First Incident

5. On November 29, 2013 at approximately 9:20 p.m., Plaintiff TYSHAWN CORBETT, who resides in Kings County, was in the vicinity of Cleveland Street and

Glenmore Avenue in Kings County when he was ordered to pull over by members of THE NEW YORK CITY POLICE DEPARTMENT. The Plaintiff, who had committed no motor vehicle infraction, pulled over as instructed. The Plaintiff observed four members of the NEW YORK CITY POLICE DEPARTMENT, including named Defendants NEW YORK CITY POLICE OFFICER JAMAL BLACKETT, NEW YORK CITY POLICE OFFICER FELIX ROSA approach his vehicle. The Plaintiff exited the vehicle and ran away from the aforementioned Defendant Officers. The Plaintiff jumped over a fence, and was at the top of a second fence when Defendant NEW YORK CITY POLICE SERGEANT PAUL MUGGEO discharged his service weapon in close proximity to Plaintiff's left ear, causing ringing, intense pain and the permanent loss of hearing in that ear. Defendant SERGEANT MUGGEO then held the Plaintiff's legs and pulled the Plaintiff off the fence as Plaintiff stated in sum and substance, "you shot me" to Defendant SERGEANT MUGGEO. The Plaintiff was then maced by Defendant NEW YORK CITY POLICE OFFICER FELIX ROSA, and punched and kicked about the body and head by Defendant NEW YORK CITY POLICE OFFICERS JAMAL BLACKETT and FELIX ROSA, causing Plaintiff extreme pain to the body and head, requiring Plaintiff to receive treatment at a local hospital, where Plaintiff was interviewed and photographed by members of THE NEW YORK CITY POLICE DEPARTMENT Internal Affairs Bureau regarding the aforementioned incident. The Plaintiff was subsequently diagnosed with an approximate loss of forty percent of the hearing in Plaintiff's left ear as a result of Defendant NEW YORK CITY POLICE SERGEANT PAUL MUGGEO discharging his service weapon in close proximity to Plaintiff's left ear.

Second Incident

6. On August 7, 2015 at approximately 10:30 p.m. Plaintiff was in the vicinity of 179 Milford Street in Kings County. Plaintiff was with a few friends at the location for approximately ten minutes when a black Jeep pulled up and four members of THE NEW YORK CITY POLICE DEPARTMENT, including named Defendant Officers, NEW YORK CITY POLICE LIEUTENANT JOHN DOE, NEW YORK CITY POLICE OFFICER JOHN DOE and NEW YORK CITY POLICE OFFICER JOHN DOE NUMBER ONE, exited the vehicle and approached the Plaintiff and his companions and ordered them not to move. Defendant Officers LIEUTENANT JOHN DOE, NEW YORK CITY POLICE OFFICER JOHN DOE, and the other Officer proceeded to physically search the Plaintiff and his companions. Defendant NEW YORK CITY POLICE LIEUTENANT JOHN DOE then informed the Plaintiff that “it must not be your lucky day, you have a warrant.” Defendant NEW YORK CITY POLICE LIEUTENANT JOHN DOE then handcuffed the Plaintiff and began to search the Plaintiff’s crotch area, physically grabbing the Plaintiff’s penis and telling the Plaintiff, in sum and substance, “you have something under your balls, we are going to strip search you at the precinct.” The Plaintiff was subsequently transported to the 75th Precinct, where he was placed in a cell. Several members of the NEW YORK CITY POLICE DEPARTMENT, including Defendant Officers NEW YORK CITY POLICE LIEUTENANT JOHN DOE, NEW YORK CITY POLICE OFFICER JOHN DOE and NEW YORK CITY POLICE OFFICER JOHN DOE NUMBER ONE then entered the cell. Defendant NEW YORK CITY POLICE LIEUTENANT JOHN DOE then ordered the Plaintiff to remove his pants and bend over and squat. Thereafter NEW YORK CITY

POLICE LIEUTENANT JOHN DOE then suddenly, physically grabbed Plaintiff's testicles causing Plaintiff's left hand to strike the metal bars of the cell causing injury to the metatarsal bones of Plaintiff's left hand, requiring Plaintiff to obtain medical treatment. No contraband was found on the Plaintiff as a result of this second search of the Plaintiff's person. The Plaintiff was held in custody at the 75th Precinct for approximately eleven hours, before being transported to Central Booking, having been issued a Summons by Defendant NEW YORK CITY POLICE OFFICER JOHN DOE. After approximately thirteen more hours in custody, the summons issued by Defendant NEW YORK CITY POLICE OFFICER JOHN DOE was dismissed by the Court. The "warrant" previously mentioned by Defendant LT JOHN DOE was for another individual with a name other than that of Plaintiff.

PROCEDURAL HISTORY

7. The Plaintiff filed Notices of Claim with The City of New York pursuant to General Municipal Law Rule 50 on or about February 24, 2014 and December 23, 2015, and had a 50H Hearing on or about October 12, 2016. The Plaintiff originally filed suit against Defendant City of New York and the Defendant Officers on or about December 28, 2015 in the United States District Court for the Eastern District of New York under Docket Number 15 CV 7359. The Plaintiff ultimately withdrew his Federal Complaint on or about October 7, 2016, with the consent of Defendant City of New York to file his case in New York State Court

FIRST CAUSE OF ACTION

8. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Seven (7) as if fully set forth herein.

9. That upon information and belief, the negligent actions of Defendant NEW YORK CITY POLICE SERGEANT PAUL MUGGEO resulted in the injury and loss of hearing of Plaintiff, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

SECOND CAUSE OF ACTION

10. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Nine (9) as if fully set forth herein.

11. That upon information and belief, the actions and conduct of Defendant NEW YORK CITY POLICE SERGEANT PAUL MUGGEO, Defendant NEW YORK CITY POLICE OFFICER FELIX ROSA and NEW YORK CITY POLICE OFFICER JAMAL BLACKETT, violated the Civil Rights of Plaintiff as those rights are enumerated in the New York State Executive Law, and other applicable sections of the New York State Constitution and enumerated Civil Rights Laws and Acts of New York State, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

THIRD CAUSE OF ACTION

12. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Eleven (11) as if fully set forth herein.

13. That upon information and belief, the actions of Defendant CITY OF NEW YORK, violated the Civil Rights of the Plaintiff as those rights are enumerated in the New York State Executive Law, and other applicable sections of the New York State Constitution and enumerated Civil Rights Laws and Acts of New York State, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

FOURTH CAUSE OF ACTION

14. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1)

through Thirteen (13) as if fully set forth herein.

15. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE SERGEANT PAUL MUGGEO resulted in the permanent loss of hearing in Plaintiff's left ear, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

FIFTH CAUSE OF ACTION

16. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Fifteen (15) as if fully set forth herein.

17. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE SERGEANT PAUL MUGGEO, Defendant NEW YORK CITY POLICE OFFICER FELIX ROSA and NEW YORK CITY POLICE OFFICER JAMAL BLACKETT, resulted in the complained of injuries to the Plaintiff, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

SIXTH CAUSE OF ACTION

18. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Seventeen (17) as if fully set forth herein.

19. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendant NEW YORK CITY POLICE SEGEANT PAUL MUGGEO, Defendant NEW YORK CITY POLICE OFFICER FELIX ROSA and Defendant NEW YORK CITY POLICE OFFICER JAMAL BLACKETT, in effectuating the arrest of the Plaintiff, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

SEVENTH CAUSE OF ACTION

20. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Nineteen (19) as if fully set forth herein.

21. That upon information and belief, the negligent actions of Defendants NEW YORK CITY POLICE OFFICER FELIX ROSA and NEW YORK CITY POLICE OFFICER JAMAL BLACKETT resulted in the complained of injuries to Plaintiff, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

EIGHTH CAUSE OF ACTION

22. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Twenty One (21) as if fully set forth herein.

23. That upon information and belief, the actions and conduct of Defendant NEW YORK CITY POLICE OFFICER JAMAL BLACKETT, violated the Civil Rights of Plaintiff as those rights are enumerated in the New York State Executive Law, and other applicable sections of the New York State Constitution and enumerated Civil Rights Laws and Acts of New York State, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

NINTH CAUSE OF ACTION

24. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Twenty Three (23) as if fully set forth herein.

25. That upon information and belief, the actions of Defendant CITY OF NEW YORK, violated the Civil Rights of the Plaintiff as those rights are enumerated in the New York State Executive Law, and other applicable sections of the New York State Constitution and enumerated Civil Rights Laws and Acts of New York State, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

TENTH CAUSE OF ACTION

26. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Twenty Five (25) as if fully set forth herein.

27. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE OFFICER JAMAL BLACKETT resulted in the complained of injury to the Plaintiff, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

ELEVENTH CAUSE OF ACTION

28. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Twenty Seven (27) as if fully set forth herein.

29. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendant NEW YORK CITY POLICE OFFICER JAMAL BLACKETT, in effectuating the arrest and detention of Plaintiff, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

TWELFTH CAUSE OF ACTION

30. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Twenty Nine (29) as if fully set forth herein.

31. That upon information and belief, the actions of Defendants, NEW YORK CITY POLICE LIEUTENANT JOHN DOE and NEW YORK CITY POLICE OFFICER JOHN DOE violated the Civil Rights of Plaintiff as those rights are enumerated in the New York State Executive Law, and other applicable sections of the New York State Constitution and enumerated Civil Rights Laws and Acts of New York State, resulting in the aforementioned and hereinafter mentioned harm

to Plaintiff.

THIRTHEENTH CAUSE OF ACTION

32. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty One (31) as if fully set forth herein.

33. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant(s) NEW YORK CITY POLICE LIEUTENANT JOHN DOE and NEW YORK CITY POLICE OFFICERS JOHN DOE resulted in the unlawful strip search of the Plaintiff, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

FOURTEENTH CAUSE OF ACTION

34. The Plaintiff incorporates by reference each of the allegations contained in paragraphs One (1) through Thirty Three (33) as if fully set forth herein.

35. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendant(s) NEW YORK CITY POLICE LIEUTENANT JOHN DOE and NEW YORK CITY POLICE OFFICER JOHN DOE, for conducting a strip search of Plaintiff without lawful reason or cause, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

WHEREFORE, the Plaintiff demands the following relief jointly and severably against all Defendants:

1. Compensatory Damages for Plaintiff.
2. Punitive Damages against Defendant New York City Police Officers PAUL MUGGEO, FELIX ROSA, JAMAL BLACKETT, LIEUTENANT JOHN DOE and NEW YORK CITY POLICE OFFICER JOHN DOE.
3. A Court Order pursuant to 42 U.S.C. 1983 that the Plaintiff is entitled to costs of the instant action, and Attorney's fees.
4. Such other and further relief as the Court may deem necessary and appropriate, including declaratory relief.

Dated: November 23, 2016



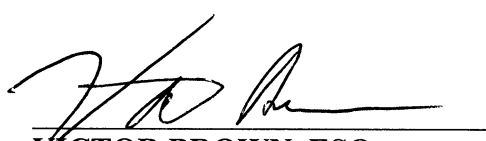
VICTOR M. BROWN, ESQ.
(VB-5289)
Attorney for Plaintiff
TYSHAWN CORBETT
11 Park Place, Suite 600
New York, NY 10007
(212) 227-7373

ATTORNEY VERIFICATION

VICTOR BROWN, ESQ., an attorney at law duly admitted to practice before the courts of the State of New York, and not a party to this action, hereby affirms the following under penalty of perjury: That he is the attorney for the plaintiff(s) in the above-entitled action, with offices located at 11 Park Place, Suite 600, New York, New York 10007. That he has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof. That the same is true to his knowledge, except as to the matters stated to be allege upon information and belief and as to those matters which he believes to be true.

That the reason this **Verification** is made by deponent rather than the plaintiff(s) is because the plaintiff(s) are not at this time within the county of New York, which is the county where deponent has his office. Deponent further says that the grounds of his belief as to all matters in the Summons and Verified Complaint, not stated to be upon knowledge, are based upon information supplied by the plaintiff(s) The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Affirmed



VICTOR BROWN, ESQ.

11/23/16